

23STCV00298 23STCV00298

County: los-angeles

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Case Number: 23STCV00298 Hearing Date: July 10, 2026 Dept: 515

Alex Meseonznik et al. v. Prime Build Construction, Inc., et al.

23STCV00298

Below are tentative rulings on Defendant's motions in limine:

Defendant Hassan Kayal dba Prime Build Construction's ("Defendant")

MIL No. 1 to exclude evidence that thermographic cameras measure moisture is denied. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue consumption of time. The Court has determined that the probative value of such evidence is not substantially outweighed by the probability that its admission will necessitate undue consumption of time or create substantial danger of undue prejudice or confusing the issues in this bench trial. (EV. CODE § 352.) Notwithstanding the denial of this motion in limine, the moving party may renew the objection to the introduction of this evidence at trial, and the Court will rule on the evidentiary objection anew in the context of the other evidence that is presented at trial.

Defendant's MIL No. 2 to exclude evidence of surface moisture meters is denied. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue consumption of time. The Court has determined that the probative value of such evidence is not substantially outweighed by the probability that its admission will necessitate undue consumption of time or create substantial danger of undue prejudice or confusing

the issues in this bench trial. (EV.

CODE § 352.) Notwithstanding the denial

of this motion in limine, the moving party may renew the objection to the introduction of this evidence at trial, and the Court will rule on the evidentiary objection anew in the context of the other evidence that is presented at trial.

Defendant's MIL No. 3 to exclude evidence or testimony that

unlicensed contractors were used is denied. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue consumption of time.

The Court has determined that the probative value of such evidence is not substantially outweighed by the probability that its admission will necessitate undue consumption of time or create substantial danger of undue prejudice or confusing the issues in this bench trial. (EV. CODE § 352.) Notwithstanding the denial of this motion in limine, the moving party may renew the objection to the introduction of this evidence at trial, and the Court will rule on the evidentiary objection anew in the context of the other evidence that is presented at trial.

Defendant's MIL No. 4 to exclude evidence from Plaintiffs' in-situ

probe pH test is denied. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue consumption of time. The Court has

determined that the probative value of such evidence is not substantially outweighed by the probability that its admission will necessitate undue consumption of time or create substantial danger of undue prejudice or confusing the issues in this bench trial. (EV.

CODE § 352.) Notwithstanding the denial

of this motion in limine, the moving party may renew the objection to the introduction of this evidence at trial, and the Court will rule on the evidentiary objection anew in the context of the other evidence that is presented at trial.

Defendant's MIL No. 5 to exclude evidence of liability

insurance is not opposed by Plaintiffs and is granted.

Defendant's MIL No. 6 to exclude evidence of other Prime

Build Construction projects or litigation is not opposed by Plaintiffs and is granted.

Defendant's MIL No. 7 to exclude non-party witnesses from the courtroom and to preclude witnesses from discussing testimony, while not opposed by Plaintiffs, is denied because it does not seek the exclusion of any evidence. On its own motion, however, the Court orders that non party witnesses are precluded from the courtroom before they testify. The Court will discuss with the parties about permitting the experts to sit in on the other experts' testimony.

Defendant's MIL No. 8 to exclude evidence of improper expert costs and request for 402 hearing is granted with respect to expert costs. This MIL, which Plaintiffs do not oppose, focuses on expert costs purportedly incurred by Plaintiffs. The parties can hash out their differences on expert costs in connection with post-trial briefing; the Court sees no reason to hear testimony on such costs at trial.

Defendant's MIL No. 9 to exclude evidence or arguments concerning alleged defects not identified in Plaintiffs' defect list or cost of repair is denied. The motion fails to identify what specific evidence the moving party seeks to exclude, i.e., what defects Plaintiffs have not previously identified yet seek to introduce at trial.

The Court declines to rule on this motion in limine in a vacuum. The moving party may at trial assert an objection to the introduction of specific evidence if and when this issue arises.